

TEXAS ADMINISTRATIVE CODE: As in effect on 8/23/2026.

TITLE 26. HEALTH AND HUMAN SERVICES

PART 1. HEALTH AND HUMAN SERVICES COMMISSION

CHAPTER 558. LICENSING STANDARDS FOR HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

SUBCHAPTER C. MINIMUM STANDARDS FOR ALL HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

DIVISION 2. CONDITIONS OF A LICENSE

§558.210. Agency Operating Hours.

- (a) An agency must adopt and enforce a written policy identifying the agency's operating hours.
- (b) For the purposes of this section, the person in charge means the administrator, the designated alternate administrator, the supervising nurse, or the alternate supervising nurse.
- (c) If an agency is closed during the agency's operating hours or between the hours of 8:00 a.m. and 5:00 p.m. Monday through Friday, the person in charge must:
 - (1) post a notice in a visible location outside the agency that will provide information regarding how to contact the person in charge; and
 - (2) leave a message on an answering machine or similar electronic mechanism that will provide information regarding how to contact the person in charge.

Source Note: The provisions of this §558.210 adopted to be effective June 1, 2006, 31 TexReg 1455; transferred effective May 1, 2019, as published in the April 12, 2019, issue of the Texas Register, 44 TexReg 1893.